

a contract with C. D., the defendant hereinafter named, for the purchase of lot number ———, in the ——— concession of the township of ———, in the county of ———, at or for the price or sum, &c., (*as in the last preceding form, according to the facts*), which contract was reduced into writing and signed by your orator, (*or by your orator and the said C. D.*), and dated the day and year aforesaid, (*or is as reduced into writing in the form of a bond, or of two bonds, with conditions thereunder written for the conveyance of the purchase, and the payment of the purchase money, upon the terms, at the times, and in manner aforesaid, respectively, signed and sealed by your orator and the said defendants and dated the day and year aforesaid, and delivered by your orator and the said defendant, each to the other respectively*); that a duplicate or counterpart of the said agreement (*or the said bond for the payment of the said purchase money and interest*), remains still in the possession of the said defendant, and the said agreement (*or bond, or bond for the conveyance of the said premises*) remains in the possession of your orator, that (*here state the reason why it is desired to rescind the contract, as*) your orator thereupon caused the necessary steps to be taken for the investigation of the title of the said defendant to the said premises, and had the same duly investigated; whereby it appeared, as the fact is, that the said defendant cannot make a good title to the said premises by reason (*here state the defect of the title,*) on which account your orator applied to the said defendant to deliver up the said duplicate or counterpart of the said agreement (*or the said bond,*) to be cancelled, offering at the same time to deliver up the said agreement (*or bond, or bond for the conveyance of the said premises,*) for the same purpose; but that the said defendant refused, and still refuses to comply with such application, and has lately brought an action against your orator upon the said agreement, (*or bond, or bond for the payment of the said purchase money and interest*). To the end therefore that the said contract may be specifically performed if the said defendant can make a good title to the said premises, or in default thereof, that the said agreement (*or bond, or bonds,*) may be delivered up to be cancelled, your orator being ready and willing, and hereby offering to do all necessary acts for that purpose; and that the said action, or any other action in respect of the matters aforesaid, may be restricted by the order and injunction of this honourable Court.

(*And for further relief; pray subpoena.*)

NOTE.—Let the form be varied according to circumstances.

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